[TRANSLATION]

(...)

## THE FACTS

The applicant, Mr Jean Benazet, was a French national who was born in 1932 and, at the time of the introduction of the application, lived in Bordeaux. He was represented before the Court by Mr P. Bernardet, a sociologist in La Fresnaye-sur-Chédouet. The French Government ("the Government") were represented by their Agent, Mrs E. Belliard, Director of Legal Affairs, Ministry of Foreign Affairs.

The facts of the case, as submitted by the parties, may be summarised as follows.

The applicant was committed to a mental hospital eight times between 1978 and 1990.

On 27 March 1991, having previously made an appointment, the applicant went to see the doctor who had issued the medical certificate authorising his most recent committal and threatened him with a pellet gun, with which he then fired five shots, wounding the doctor in the head and the left knee. A judicial investigation was opened for attempted murder with premeditation.

On 21 May 1991, in accordance with Articles L. 342 and L. 348 of the Public Health Code, the Prefect of the Vaucluse *département* ordered the applicant's compulsory hospitalisation in the difficult patients unit (D.P.U.) of the Montfavet specialised hospital centre (S.H.C.). The order took effect on 23 May 1991, when the investigating judge of the Bordeaux *tribunal de grande instance* dismissed the charges against the applicant concerning the events of 27 March 1991, stating that two psychiatric experts had found that the applicant had been mentally disturbed at the material time and could therefore not be prosecuted.

Two orders confirming the applicant's compulsory confinement were issued on 27 June 1991 and 18 June 1993 by the Prefect of the Vaucluse *département*.

On 3 November 1993 the Prefect of Vaucluse issued a new order concerning the applicant, stating that he posed a threat to public order and safety and ordering his continued confinement.

On 28 October 1998 the applicant applied to the urgent applications judge of the Avignon *tribunal de grande instance* for his immediate release from the Montfavet S.H.C., by virtue of Articles L. 345 and L. 351 of the Public Health Code.

On 19 February 1999 the Avignon *tribunal de grande instance* dismissed the applicant's urgent application.

On 10 March 1999 the applicant appealed against that judgment. Relying, in particular, on Article 5 §§ 1 and 2 of the Convention, he submitted that the decision of 21 May 1991 had never been served on him and that his detention was in any event illegal.

By a decision of 2 September 1999 the Nîmes Court of Appeal found that Article L. 345 of the Public Health Code was applicable in the instant case, subject to compliance also with Articles L. 348 and L. 348-1 of that code, and in an interlocutory decision on the applicant's request for immediate release, appointed two medical experts to examine him, in conformity with the above-mentioned provisions.

The two experts filed their reports with the registry of the Court of Appeal on 13 October and 4 November 1999.

In a judgment of 9 March 2000, the Nîmes Court of Appeal dismissed the applicant's appeal for immediate release.

The applicant appealed to the Court of Cassation against the two judgments of the Nîmes Court of Appeal .

In the meantime, on 18 July 2000, the Prefect of Vaucluse issued an order authorising the applicant's transfer to the *Charles Perrens* specialised hospital centre (S.H.C.) in Bordeaux.

On 25 July 2000 the applicant was transferred.

From 26 June 2001 onwards the applicant was no longer confined under the "compulsory committal" system but "hospitalised at the request of a third party".

From 30 August 2001, while still under regular psychiatric supervision in hospital, he was allowed out for a time on a trial basis, during which he stayed at the *Amaryllis* retirement home in Bordeaux.

In a judgment delivered on 11 June 2002 the Court of Cassation, ruling on the appeals lodged against the Nîmes Court of Appeal's judgments of 2 September 1999 and 9 March 2000, set aside those judgments on the ground that the provisions of Article L. 345 of the Public Health Code did not apply to compulsory committal ordered under Article L. 348 of that code. Without ordering a rehearing, the Court of Cassation upheld the decision of 19 February 1999.

On 3 October 2002 the applicant lodged an application to be released from the *Charles Perrens* S.H.C. in Bordeaux.

On 26 November 2002 he was heard by the liberties and detention judge of the Bordeaux *tribunal de grande instance*, who delivered judgment on 29 November 2002, ordering the applicant's immediate release and terminating his "hospitalisation at the request of a third party".

On 11 September 2003 the supervision measure under which the applicant had been placed was lifted.

In the meantime, on 10 December 2002, the applicant had lodged an application with the Court.

In a letter of 12 July 2006 the applicant's representative before the Court informed the Court that the applicant had died in May 2006.

The applicant's only heir, his daughter A., is in the care of the State, in the *Association pour adultes et jeunes handicapés* (APAJH - Association for Adults and Young People with Disabilities ) in Bordeaux. Considering that it did not have authority to decide alone whether or not the application should be continued, the APAJH applied to the Bordeaux guardianship judge for instructions.

In a letter dated 30 October 2006 the Bordeaux guardianship judge informed the APAJH that it did not seem judicious for A. to take over the various legal proceedings her father had initiated, including the present application. The medical information in his possession made it clear that it was not in the interest of the daughter's protection for her to take such a course.

## COMPLAINTS

At the outset, relying on Article 3 of the Convention, the applicant alleged that his confinement in the difficult patients unit (D.P.U.) had amounted to inhuman and degrading treatment.

Under Article 5 § 1 of the Convention he complained, in particular, about the conditions of supervision of patients in Montfavet D.P.U. and questioned the lawfulness of his confinement. He also complained of the lack of regular review of the measure ordering his confinement in Montfavet D.P.U.

Relying on Article 5 § 2 of the Convention, he complained, among other things, of the failure to serve him with his committal order and the various ensuing renewal orders.

Under Article 5 § 3 of the Convention he alleged that, at the time of his committal in June 1991, he had not been brought before a judge to verify the need for his confinement.

Under Article 5 § 4 of the Convention he claimed, in particular, that no prompt decision had been reached, at the first instance or on appeal, on his 28 October 1998 urgent application to the Avignon *tribunal de grande instance*.

The applicant also claimed that he had received no compensation for the damage sustained as a result of his confinement.

Relying on Article 6 § 1 of the Convention, the applicant challenged the fairness of the proceedings before the Court of Cassation.

Relying on Article 8 of the Convention, he complained mainly of the damage to his relations with his daughter caused by his confinement in the Montfavet D.P.U., and of the neuroleptic treatment allegedly administered to him without his consent, which he considered an unjustified intrusion into his private life. He also complained that he had been assigned to the *Amaryllis* retirement home, a measure he perceived as interference with his rights under Article 8 that was not in accordance with the law.

Lastly, relying on Articles 10 and 11 of the Convention, he submitted that he had been prevented from expressing himself and, in particular, from attending meetings of the *Groupement Information Asiles* (Asylum Information Group), an association of which he was a member.

Some of these complaints were raised in combination with Article 13 of the Convention, as he considered he had not been able to exercise the right to an effective remedy.

## THE LAW

The Court takes note of the letter of 12 July 2006 informing it of the applicant's death. The letter of 4 November 2006 informed it that the persons responsible for care of the applicant's sole heir, having consulted the guardianship judge, had not considered it judicious for her to take over and continue this application.

The Court notes this decision and finds that there are no special circumstances in the case affecting respect for human rights as defined in the Convention and requiring the further examination of the application under Article 37 § 1 *in fine* of the Convention. Accordingly, the case should be struck out of the list.

For these reasons, the Court unanimously

*Decides* to strike the application out of its list of cases.

S. DOLLÉ
Registrar

A.B. BAKA,
President